

SECTION 01 35 26

GOVERNMENTAL SAFETY REQUIREMENTS
05/24

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AMERICAN SOCIETY OF HEATING, REFRIGERATING AND AIR-CONDITIONING ENGINEERS (ASHRAE)

ASHRAE 52.2 (2017) Method of Testing General Ventilation Air-Cleaning Devices for Removal Efficiency by Particle Size

AMERICAN SOCIETY OF SAFETY PROFESSIONALS (ASSP)

ANSI/ASSP A10.34 (2021) Protection of the Public on or Adjacent to Construction Sites

ANSI/ASSP A10.44 (2020) Control of Energy Sources (Lockout/Tagout) for Construction and Demolition Operations

ANSI/ASSP Z490.1 (2016) Criteria for Accepted Practices in Safety, Health, and Environmental Training

ASTM INTERNATIONAL (ASTM)

ASTM D6245 (2012) Using Indoor Carbon Dioxide Concentrations to Evaluate Indoor Air Quality and Ventilation

ASTM D6345 (2010) Standard Guide for Selection of Methods for Active, Integrative Sampling of Volatile Organic Compounds in Air

ASTM F855 (2020) Standard Specifications for Temporary Protective Grounds to Be Used on De-energized Electric Power Lines and Equipment

INSTITUTE OF ELECTRICAL AND ELECTRONICS ENGINEERS (IEEE)

IEEE 1048 (2016) Guide for Protective Grounding of Power Lines

IEEE C2 (2023) National Electrical Safety Code

INTERNATIONAL SAFETY EQUIPMENT ASSOCIATION (ISEA)

ANSI/ISEA Z89.1 (2014; R 2019) American National Standard for Industrial Head Protection

NATIONAL ELECTRICAL MANUFACTURERS ASSOCIATION (NEMA)

NEMA Z535.2 (2011; R 2017) Environmental and Facility
Safety Signs

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)

NFPA 51B (2024) Standard for Fire Prevention During
Welding, Cutting, and Other Hot Work

NFPA 70 (2023; ERTA 7 2023; TIA 23-15) National
Electrical Code

NFPA 70E (2024) Standard for Electrical Safety in
the Workplace

NFPA 241 (2022) Standard for Safeguarding
Construction, Alteration, and Demolition
Operations

NFPA 306 (2024) Standard for the Control of Gas
Hazards on Vessels

SHEET METAL AND AIR CONDITIONING CONTRACTORS' NATIONAL ASSOCIATION
(SMACNA)

ANSI/SMACNA 008 (2007) IAQ Guidelines for Occupied
Buildings Under Construction, 2nd Edition

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1 (2024) Safety -- Safety and Occupational
Health (SOH) Requirements

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

10 CFR 20 Standards for Protection Against Radiation

29 CFR 1910 Occupational Safety and Health Standards

29 CFR 1915 Confined and Enclosed Spaces and Other
Dangerous Atmospheres in Shipyard
Employment

29 CFR 1919 Gear Certification

29 CFR 1926 Safety and Health Regulations for
Construction

49 CFR 173 Shippers - General Requirements for
Shipments and Packagings

CPL 2.100 (1995) Application of the Permit-Required
Confined Spaces (PRCS) Standards, 29 CFR
1910.146

1.2 DEFINITIONS

The following definitions are for the convenience of the reader. If there is a referenced document in the text of this specification section, that is the document that should define terms for that paragraph. If further clarification is needed, contact the Contracting Officer.

1.2.1 Site Safety and Health Officer (SSHO)

A Contractor Employee that is responsible for overseeing and ensuring implementation of the prime Contractor's Safety and Occupational Health (SOH) program according to the Contract, EM 385-1-1, applicable federal, state, and local requirements.

1.2.1.1 Level One SSHO

A designated employee with full-time SOH responsibility that meets and follows the requirements of EM 385-1-1.

1.2.1.2 Level Two SSHO

A designated employee with Level Two SSHO responsibility that meets and follows the requirements of EM 385-1-1. Level Two SSHOs cannot be assigned to projects that have a residual Risk Assessment Code (RAC) of high or extremely high.

1.2.1.3 Level Three SSHO

A designated Qualified Person or Competent Person with SOH responsibility that meets and follows the requirements of EM 385-1-1. Level 3 SSHOs cannot be assigned to projects that have a residual RAC of high or extremely high.

1.2.1.4 Alternate SSHO

An employee that meets the definition of the contract-required level SSHO, but is not the primary SSHO.

1.2.2 Competent Person (CP)

The CP is a person designated in writing, who, through training, knowledge, and experience, is capable of identifying, evaluating, and addressing existing and predictable hazards in the working environment or working conditions that are unsanitary, hazardous, or dangerous to personnel, and who has authorization to take prompt corrective measures to eliminate them.

1.2.3 Qualified Person (QP)

The QP is a person designated in writing, who, by possession of a recognized degree, certificate, or professional standing, or extensive knowledge, training, and experience, has successfully demonstrated their ability to solve or resolve problems related to the subject matter, the work, or the project.

1.3 SUBMITTALS

Government Acceptance or Approval does not remove responsibility from the Contractors for their actions or liability.

Government approval is required for all submittals. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Accident Prevention Plan (APP)

SD-06 Test Reports

Accident Reports

SD-07 Certificates

Activity Hazard Analysis (AHA)

Contractor Safety Self-Evaluation Checklist

1.4 PUBLIC HEALTH EMERGENCIES

In the event of a declared public health emergency, follow safety precautions as required by the Occupational Safety and Health Administration (OSHA) www.osha.gov, the Centers for Disease Control and Prevention (CDC) www.cdc.gov, and as required by federal, state, and local requirements.

1.5 CONTRACTOR SAFETY SELF-EVALUATION CHECKLIST

Contracting Officer will provide a "Contractor Safety Self-Evaluation Checklist" to the Contractor at the preconstruction conference. Complete the checklist monthly and submit with each request for payment voucher. This submission is required monthly even when a payment voucher is not requested. An acceptable score of 90 or greater is required. Failure to submit the completed safety self-evaluation checklist or achieve a score of at least 90 may result in retention of up to 10 percent of the voucher. The Contractor Safety Self-Evaluation Checklist can be found on the Whole Building Design Guide website at www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-35-26

1.6 REGULATORY REQUIREMENTS

In addition to the detailed requirements included in the provisions of this Contract, comply with the most recent edition of USACE EM 385-1-1, and all applicable federal, state, and local laws, ordinances, criteria, rules, and regulations at the date of the Solicitation for this Contract. Submit matters of interpretation of standards to the appropriate administrative agency for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements govern.

1.6.1 Subcontractor Safety Requirements

For this Contract, neither Contractor nor any subcontractor may enter into Contract with any subcontractor that fails to meet the following requirements. The term subcontractor in this and the following paragraphs means any entity holding a Contract with the Contractor or with a subcontractor at any tier.

1.6.1.1 Experience Modification Rate (EMR)

Subcontractors on this Contract must have an effective EMR less than or equal to 1.10, as computed by the National Council on Compensation Insurance (NCCI) or if not available, as computed by the state agency's rating bureau in the state where the subcontractor is registered, when entering into a subcontract agreement with the Prime Contractor or a subcontractor at any tier. The Prime Contractor may submit a written request for additional consideration to the Contracting Officer where the specified acceptable EMR range cannot be achieved. Relaxation of the EMR range will only be considered for approval on a case-by-case basis for special conditions and must not be anticipated as tacit approval. Contractor's SSHO must collect and maintain the certified EMR ratings for all subcontractors on the project and make them available to the Government at the Government's request.

1.6.1.2 OSHA Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate

Subcontractors on this Contract must have a DART rate, calculated from the most recent, complete calendar year, less than or equal to 3.4 when entering into a subcontract agreement with the Prime Contractor or a subcontractor at any tier. The OSHA Dart Rate is calculated using the following formula:

$$(N/EH) \times 200,000$$

Where:

N = number of injuries and illnesses with days away, restricted work, or job transfer

EH = total hours worked by all employees during most recent, complete calendar year

200,000 = base for 100 full-time equivalent workers (working 40-hours per week, 50 weeks per year)

The Prime Contractor may submit a written request for additional consideration to the Contracting Officer where the specified acceptable OSHA Dart rate range cannot be achieved for a particular subcontractor. Relaxation of the OSHA DART rate range will only be considered for approval on a case-by-case basis for special conditions and must not be anticipated as tacit approval. Contractor's SSHO must collect and maintain self-certified OSHA DART rates for all subcontractors on the project and make them available to the Government at the Government's request.

1.7 SITE QUALIFICATIONS, DUTIES, AND MEETINGS

1.7.1 Site Safety and Health Officer (SSHO)

1.7.1.1 Qualifications of SSHO

Primary SSHO, must be a Level One SSHO as defined in Section 1.2.1.1, and must have met the training and experience requirements identified in the EM 385-1-1 and this Contract.

1.7.1.2 Duties of SSHO

All SSHOs will carry out the roles and responsibilities as identified in this Contract and the EM 385-1-1. All SSHOs will be designated on an ENG Form 6282, provided by the Contracting Officer. Superintendent, QC Manager, and SSHO are subject to dismissal if their required duties are not being effectively carried out. If either the Superintendent, QC Manager, or SSHO are dismissed, project work will be stopped and will not be allowed to resume until a suitable replacement is approved and the above duties are again being effectively carried out.

1.7.1.3 Safety Meetings

Conduct safety meetings to review past activities, plan for new or changed operations, review pertinent aspects of appropriate AHA (by trade), establish safe working procedures for anticipated hazards, and provide pertinent SOH training and motivation. Conduct meetings at least once a month for all supervisors at the project location. The SSHO, supervisors, or foremen must conduct meetings at least once a week for the trade workers. Document meeting minutes to include the date, persons in attendance, subjects discussed, and names of individual(s) who conducted the meeting. Maintain documentation on-site and furnish copies to the Contracting Officer on request. Notify the Contracting Officer of all scheduled meetings 7 calendar days in advance.

1.7.2 Roles and Responsibilities of Prime Contractor and SSHO

The Prime Contractor and SSHO must ensure that the requirements of all applicable OSHA and EM 385-1-1 are met for the project. The Prime Contractor must ensure an SSHO or an equally qualified Alternate SSHO(s) is at the worksite at all times to implement and administer the Contractor's safety program and Government accepted APP. If the required SSHO has to temporarily (that is, up to 24 hours / 1 day) leave the site of work due to unforeseen or emergency situations, a Level One, Two, or Three SSHO may be used in the interim and must be on the site of work at all times when work is being performed.

If the SSHO must be off-site for a period longer than 24 hours / 1 day, a qualified alternate that meets the contract requirements must be onsite.

a. Prime contractor must ensure all SSHOs will:

- (1) Are designated on an ENG Form 6282.
- (2) Meet minimum training and experience requirements identified in EM 385-1-1.
- (3) Execute roles and responsibilities identified in EM 385-1-1.

1.7.3 Additional Requirements

The SSHO shall also serve as the QC Manager and the Environmental Manager. The SSHO may also serve as the Superintendent.

1.7.4 Qualified Trainer Requirements

Individuals qualified to instruct the 40-hour contract safety awareness course, or portions thereof, must meet the definition of a Competent Person Trainer as defined in the EM 385-1-1, and, at a minimum, possess a

working knowledge of the following subject areas: EM 385-1-1, Electrical Standards, Lockout/Tagout, Fall Protection, Confined Space Entry for Construction; Excavation, Trenching and Soil Mechanics; and Scaffolds in accordance with 29 CFR 1926.

Instructors are required to:

- a. Prepare class presentations that cover construction-related safety requirements.
- b. Ensure that all attendees attend all sessions by using a class roster signed daily by each attendee. Maintain copies of the roster for at least 5 years. This is a certification class and must be attended 100 percent. In cases of emergency where an attendee cannot make it to a session, the attendee can make it up in another class session for the same subject.
- c. Update training course materials whenever an update of the EM 385-1-1 becomes available.
- d. Provide a written exam of at least 50 questions. Students are required to answer 80 percent correctly to pass.
- e. Request, review and incorporate student feedback into a continuous course improvement program.

1.7.5 Preconstruction Conference

- a. Contractor representatives who have a responsibility or significant role in accident prevention on the project must attend the preconstruction conference. This includes the project superintendent, SSHO, QC manager, or any other assigned safety and health professionals who participated in the development of the APP (including the AHAs and special plans, programs, and procedures associated with it).
- b. Discuss the details of the submitted APP to include incorporated plans, programs, procedures, and a listing of anticipated AHAs that will be developed and implemented during the performance of the Contract. This list of proposed AHAs will be reviewed and an agreement will be reached between the Contractor and the Contracting Officer as to which phases will require an analysis. In addition, establish a schedule for the preparation, submittal, and Government review of AHAs to preclude project delays. The creation of the APP and Schedule will be created after being given Notice to Proceed.
- c. Deficiencies in the submitted APP, identified during the Contracting Officer's review, must be corrected, and the APP re-submitted for review prior to the start of construction. Work is not permitted to begin until an APP is established that is acceptable to the Contracting Officer.

1.8 ACCIDENT PREVENTION PLAN (APP)

1.8.1 Accident Prevention Plan (APP)

Submit the APP for review and acceptance by the Government at least 15 calendar days prior to the start, after being given Notice to Proceed. A competent person must prepare the written site-specific APP. Prepare the

APP in accordance with the format and requirements of EM 385-1-1, ENG Form 6293, and herein. The APP must be job-specific and address any unusual or unique aspects of the project or activity for which it is written. The APP must interface with the Contractor's overall SOH program referenced in the APP in the applicable APP element, and made site-specific. Describe the methods to evaluate past safety performance of potential subcontractors in the selection process. Also, describe innovative methods used to ensure and monitor safe work practices of subcontractors. The Government considers the Prime Contractor to be the "controlling employer" for all worksite safety and health of the subcontractors. Contractors are responsible for informing their subcontractors of the safety provisions under the terms of the Contract and the penalties for noncompliance, coordinating the work to prevent one craft from interfering with or creating hazardous working conditions for other crafts, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out. The APP must be signed in accordance with the APP and ENG Form 6293 APP Worksheet. The SSHO must provide and maintain the APP and a log of signatures by each subcontractor foreman, attesting that they have read and understand the APP, and make the APP and log available on-site to the Contracting Officer. If English is not the foreman's primary language, the Prime Contractor must provide an interpreter.

Submit the APP to the Contracting Officer within 30 calendar days of Contract award and not less than 10 calendar days prior to the date of the preconstruction conference for acceptance. Work cannot proceed without an accepted APP. Once reviewed and accepted by the Contracting Officer, the APP and attachments will be enforced as part of the Contract. Disregarding the provisions of this Contract or the accepted APP is cause for stopping of work, at the discretion of the Contracting Officer, until the matter has been rectified. Continuously review and amend the APP, as necessary, throughout the life of the Contract. Changes to the accepted APP must be made with the knowledge and concurrence of the Contracting Officer, project superintendent, SSHO, and QC Manager. Incorporate unusual or high-hazard activities not identified in the original APP as they are discovered. Should any severe hazard exposure (i.e., imminent danger) become evident, stop work in the area, secure the area, and develop a plan to remove the exposure and control the hazard. Notify the Contracting Officer within 24 hours of discovery. Eliminate and remove the hazard. In the interim, take all necessary action to restore and maintain safe working conditions in order to safeguard onsite personnel, visitors, the public (as defined by ANSI/ASSP A10.34), and the environment.

1.8.2 Names and Qualifications

Provide plans in accordance with the requirements outlined in EM 385-1-1, including the following:

- a. Names and qualifications (resumes including education, training, experience, and certifications) of site safety and health personnel designated to perform work on this project to include the designated SSHO and other competent and qualified personnel to be used. Specify the duties of each position.
- b. As a minimum, designate and submit qualifications of Competent Persons (CP) for each of the following major areas: excavation; scaffolding; fall protection; hazardous energy; confined space; health hazard recognition, evaluation and control of chemical, physical and biological agents; and personal protective equipment and clothing to

include selection, use and maintenance. Designate and submit qualifications for additional CPs as applicable to the work performed under this Contract.

1.8.3 Plans

Provide plans in the APP in accordance with the requirements outlined in EM 385-1-1, including the following:

1.9 ACTIVITY HAZARD ANALYSIS (AHA)

Before beginning each activity, task, or Definable Feature of Work (DFOW) involving a type of work presenting hazards not experienced in previous project operations, or where a new work crew or subcontractor is to perform the work, the Contractor(s) performing that work activity must prepare an AHA. AHAs must be developed by the Prime Contractor, subcontractor, or supplier performing the work, and provided for Prime Contractor review and approval before submitting to the Contracting Officer. AHAs must be signed by the SSHO, Superintendent, QC Manager, and the subcontractor Foreman performing the work. Format the AHA in accordance with EM 385-1-1 or as directed by the Contracting Officer. Submit the AHA for review at least 15 working days prior to the start of each activity, task, or DFOW. The Government reserves the right to require the Contractor to revise and resubmit the AHA if it fails to effectively identify the work sequences, specific anticipated hazards, site conditions, equipment, materials, personnel, and the control measures to be implemented.

AHAs must identify competent persons required for phases involving high risk activities, including confined entry, crane and rigging, excavations, trenching, electrical work, fall protection, and scaffolding.

1.9.1 AHA Management

Review the AHA list periodically (at least monthly) at the Contractor supervisory safety meeting, and update as necessary when procedures, scheduling, or hazards change. Use the AHA during daily inspections by the SSHO to ensure the implementation and effectiveness of the required safety and health controls for that work activity.

1.9.2 AHA Signature Log

Each employee performing work as part of an activity, task, or DFOW must review the AHA for that work and sign a signature log specifically maintained for that AHA prior to starting work on that activity. The SSHO must maintain a signature log on site for every AHA. Provide employees, whose primary language is other than English, with an interpreter to ensure a clear understanding of the AHA and its contents.

1.10 SITE SAFETY REFERENCE MATERIALS

Maintain safety-related references applicable to the project, including those listed in paragraph REFERENCES. Maintain applicable equipment manufacturer's manuals.

1.11 EMERGENCY MEDICAL TREATMENT

Contractors must arrange for their own emergency medical treatment in accordance with EM 385-1-1. The Government has no responsibility to

provide emergency medical treatment.

1.12 NOTIFICATIONS AND REPORTS

1.12.1 Accident Notification

Notify the Contracting Officer in accordance with the EM 385-1-1 Accident Reporting Timeline.

Table Accident Reporting Required Timeline		
Accident Type	Notify KO or COR	Complete Final Accident Report on ENG 3394 and provide to KO or COR
Fatality, in-patient hospitalization, amputation, eye loss, or property damage over \$600,000.	Immediately, no later than (NLT) 8 Hours	Within 7 Days
All other accidents and near misses	Immediately, no later than (NLT) 24 Hours	Within 7 Days

Within notification include Contractor name; Contract title; type of Contract; name of activity, installation, or location where accident occurred; date and time of accident; names of personnel injured; extent of property damage, if any; extent of injury, if known; and brief description of accident (for example, type of construction equipment used and PPE used). Preserve the conditions and evidence on the accident site until the Government investigation team arrives on-site and Government investigation is conducted. Assist and cooperate fully with the Government's investigation(s) of any accident or near miss.

1.12.2 Accident Reports

- a. Conduct an accident investigation for recordable injuries and illnesses, property damage, and near misses as defined in EM 385-1-1, to establish the root cause(s) of the accident. Complete the applicable NAVFAC Contractor Incident Reporting System (CIRS), and electronically submit via the NAVFAC Enterprise Safety Applications Management System (ESAMS). Complete and submit an accident investigation report in ESAMS within 7 days for accidents as defined by EM 385-1-1. Complete the investigation report within 30 days. Accidents must include a written report submitted as an attachment in ESAMS using the following outline:

(1) Summary description to include:

- (a) Process
- (b) Findings
- (c) Outcomes

(2) Root Cause

(3) Direct Factors

(4) Indirect and Contributing Factors

(5) Corrective Actions

(6) Recommendations

All accidents are reportable, regardless of whether or not it is recordable.

- b. Near Misses: For Navy Projects, complete the applicable documentation in NAVFAC CIRS, and electronically submit via the NAVFAC ESAMS. Near miss reports are considered positive and proactive Contractor safety management actions.
- c. Conduct an accident investigation for any Load Handling Equipment (LHE) accident (including rigging accidents) to establish the root cause(s) of the accident. Complete the LHE Accident Report (Crane and Rigging Accident Report) form and provide the report to the Contracting Officer within 30 calendar days of the accident. Do not proceed with crane operations until cause is determined and corrective actions have been implemented to the satisfaction of the Contracting Officer. The Contracting Officer will provide a blank copy of the accident report form.

1.13 SEVERE STORM PLAN

In the event of a severe storm warning, the Contractor must comply with the applicable Storm Plan and:

- a. Secure outside equipment and materials and place materials that could be damaged in protected areas.
- b. Check surrounding area, including roof, for loose material, equipment, debris, and other objects that could be blown away or against existing facilities.
- c. Ensure that temporary erosion controls are adequate.

PART 2 PRODUCTS

Not used

PART 3 EXECUTION

3.1 CONSTRUCTION AND OTHER WORK

Comply with EM 385-1-1, NFPA 70, NFPA 70E, NFPA 241, the APP, the AHA, Federal and State OSHA regulations, and other related submittals and activity fire and safety regulations. The most stringent standard prevails.

PPE is governed in all areas by the nature of the work the employee is performing. Use personal hearing protection at all times in designated noise hazardous areas or when performing noise hazardous tasks. Safety glasses must be worn or carried/available on each person. Mandatory PPE includes:

- a. Head Protection that meets ANSI/ISEA Z89.1

- b. Long Pants
- c. Appropriate Safety Footwear
- d. Appropriate Class Reflective Vests

3.1.1 Worksite Communication

Employees working alone in a remote location or away from other workers must be provided an effective means of emergency communications (i.e., cellular phone, two-way radios, land-line telephones, or other acceptable means). The selected communication must be readily available (easily within the immediate reach) of the employee and must be tested prior to the start of work to verify that it effectively operates in the area/environment. Develop an employee check-in/check-out communication procedure to ensure employee safety.

3.1.2 Unforeseen Hazardous Material

Contract documents identify materials such as PCB, lead paint, and friable and non-friable asbestos and other OSHA regulated chemicals (i.e., 29 CFR Part 1910.1000). If material(s) that may be hazardous to human health upon disturbance are encountered during demolition, repair, renovation, or construction operations, stop that portion of work and notify the Contracting Officer immediately. Within 14 calendar days the Government will determine if the material is hazardous. If material is not hazardous or poses no danger, the Government will direct the Contractor to proceed without change. If material is hazardous and handling of the material is necessary to accomplish the work, the Government will issue a modification.

3.2 EQUIPMENT

3.2.1 Use of Explosives

Explosives must not be used or brought to the project site without prior written approval from the Contracting Officer. Such approval does not relieve the Contractor of responsibility for injury to persons or for damage to property due to blasting operations.

Storage of explosives, when permitted on Government property, must be only where directed and in approved storage facilities. These facilities must be kept locked at all times except for inspection, delivery, and withdrawal of explosives.

-- End of Section --